

22STCV10372 22STCV10372

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-03

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Case Number: 22STCV10372 Hearing Date: September 3, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 3, 2026 TRIAL

DATE: Vacated

CASE: Schmitz v. Beach City Capital, LLC, et al.

CASE

NO.: 22STCV10372

MOTION FOR

CHARGING ORDER

MOTION FOR ASSIGNMENT

OR TURNOVER

MOVING PARTY/PARTIES: Plaintiff
and Judgment Creditor Florian Schmitz

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct Address: Yes

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Served electronically on February 5,
2026 for an original hearing date of June 4, 2026, continued to this date by
this Court's order of June 8, 2026

CASE HISTORY:

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March 25, 2022: Complaint filed.

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September 15, 2023: Stipulated
judgment entered.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff

and Judgment Creditor Florian Schmitz ("Plaintiff") moves for a charging order
against the interests of Defendants and Judgment Debtors Jason Muller
("Muller"), Beach City Capital, LLC, and/or Beach City Capital Management, LLC
(collectively, "Defendants") in Local Collaborative Hermosa, LLC; Local
Collaborative Laguna, LLC, and Local Collaborative, LLC (collectively, "Local
Collaborative"). Plaintiff also moves for an
assignment of any payments from Local Collaborative to Defendants. The Court
previously considered this matter and, in its order of June 8, 2026, continued
the matter to this date.

TENTATIVE RULING:

Plaintiff's

motion for charging order and Plaintiff's motion for turnover order are DENIED
WITHOUT PREJUDICE

Moving

party to give notice.

DISCUSSION:

Motion for charging order

Assets in a limited liability

company are not subject to a monetary judgment against a member personally. A

judgment creditor must obtain a court order charging the assets in a limited

liability company with the amount of the judgment against the member. (Code Civ. Proc., §§ 699.720(a)(2), 708.310.) The judgment creditor may make a motion for a

charging order in the court that entered the judgment. (See Corps. Code, §§ 15907.03, subd. (a),

16504, subd. (a), 17705.03, subd. (a); Code Civ. Proc., §§ 708.310, 708.320.)

The judgment creditor's personal

service of the motion on the limited liability company creates a lien on the

judgment debtor's interest in the limited liability company. (Code Civ. Proc.,

§ 708.320, subd. (a).) Unless the Court

refuses to issue the charging order, the lien continues until the judgment

becomes unenforceable. (Code Civ. Proc.,

§§ 697.030, 697.040, 708.320, subd. (b).)

As the Court noted in its order of

June 8, 2026, Plaintiff served this motion on Muller by email. While Muller is the registered agent for

service of process for Local Collaborative, Plaintiff nonetheless must

personally serve Muller as the agent for service of process for Local

Collaborative. Accordingly, the Court

continued the matter to this date for Plaintiff to properly serve Local

Collaborative. Plaintiff nonetheless has

not filed proof of personal service on Muller.

As such, the Court must DENY the matter.

Motion for turnover order

A judgment creditor may obtain an

assignment of all or part of a right to payment due, or to become due. (Code Civ. Proc., § 708.510, subd. (a).) The Court must make a noticed motion for an

assignment order, and must serve the notice on the judgment debtor personally

or by mail. (Code Civ. Proc., § 708.510,

subds. (a), (b).)

Plaintiff served this motion on

Muller by email. While Muller is the

registered agent for service of process for Local Collaborative, Plaintiff nonetheless must personally serve Muller as the agent for service of process for Local Collaborative, or serve Muller by mail. Accordingly, the Court must continue the matter for Plaintiff to properly serve Local Collaborative.

Accordingly,

Plaintiff's motion for charging order and motion for turnover order are DENIED WITHOUT PREJUDICE.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 3, 2026 _____

Rolf

M. Treu

Judge

of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.